Approved at th

MINUTES OF A CITY COUNCIL MEETING

February 11, 2025

12:00 PM

Mayor Keeley opened the City Council Closed Session at 12:01 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, City Attorney T. Condotti, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Statements of Disqualification – None.

City Attorney T. Condotti asked Council to add a subsequent need item of Consideration of Initiation of Litigation (Government Code §54956.9(d)(4)). The information Council will be discussing was brought to attention after the agenda was posted. Should Council decide to proceed with initiation of litigation, there is a need for action before the next regular Council meeting.

MOTION: Councilmember Golder moved, seconded by Councilmember Brunner, to add a subsequent need item of Consideration of Initiation of Litigation to the Closed Session agenda.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Public Comment

Mayor Keeley opened the public comment period at 12:03 p.m. There were no speakers. Mayor Keeley closed the public comment period at 12:04 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference with Legal Counsel - Existing Litigation (Government Code §54956.9(d)(1))

   City of Santa Cruz v. Chevron Corp. et al., (Sea Level Rise Litigation)
   (Santa Cruz County Superior Court Case No. 17CV03243, United States District Court, Northern District Case No. 18-cv-00458 LHK, San Francisco Superior Court Case No. CJC-24-005310)

Council received a report, and by motion approved an appeal of the decision by the San Francisco Superior Court granting a motion to quash by the Citco corporation.

Conference with Legal Counsel – Consideration of Initiation of Litigation (Government Code §54956.9(d)(4)

Council gave direction to the City Attorney's Office to join in one item of existing litigation. The parties and the particulars of that litigation will be available upon request by members of the public when the pleadings are filed.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
February 11, 2025

12:30 PM

Call to Order – Mayor Keeley called the meeting to order at 12:37 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Elder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney T. Condotti, Director of Finance E. Cabell, Chief People Officer S. De Leon, Director of Planning and Community Development L. Butler, Director of Public Works N. Nguyen, Director of Parks and Recreation T. Elliot, Chief of Fire R. Oatey, Chief of Police B. Escalante, Director of Economic Development and Housing B. Lipscomb (via Zoom), Director of Water H. Luckenbach (via Zoom), Director of Information Technology K. Morgan (via Zoom), Deputy City Manager L. Murphy (via Zoom), Management Analyst E. Burton, Deputy Fire Marshal T. Shields, Principal Management Analyst M. Albert, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 12:38 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Roland Sear spoke regarding similarities between World War II and the concerns he has now.

Oral Communications (continued)

Ken Reichman urged Council to reaffirm Santa Cruz's commitment to abide by the California Values Act and requested that Council provide financial support for families traumatized by deportation.

David McCune spoke with opposition to gas-powered leaf blowers.

Dora spoke regarding the Santa Cruz Police, Sheriff's Department and the CHP offices displacing homeless people camping on Coral Street, Highway 1, on the levee, and in San Lorenzo Park on Monday, January 27th.

Pauline Seales thanked the Mayor and City Manager, Matt Huffaker, for signing the November 7th letter of support for immigrants and asked Council to give the strongest level of support to Santa Cruz's immigrant community.

Unidentified person spoke regarding homelessness.

Unidentified person cited Penal Code 401 and inferred the Black Lives Matter painting in front of City Hall promoted a self-immolation.

At 12:53 p.m. Mayor Keeley closed Oral Communications.

Presiding Officer's Announcements

Statements of Disqualification – None.

Additions and Deletions – None.

City Attorney Report on Closed Session – See pages 7807—7808 for the report.

Council Meeting Calendar

2. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Vice Mayor Kalantari-Johnson commented on items 5, 9, 11, and 14.

Councilmember Newsome commented on items 9 and 10.

Councilmember Brunner made a comment on item 10.

Councilmember Trigueiro made a comment on item 6.

Mayor Keeley opened the public comment period. The following people spoke:

Unidentified person commented on items 3, 4, 12, and 6.

Unidentified person made a comment on item 6.

Mayor Keeley closed the public comment period.

Mayor Keeley made a comment on item 6.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember Newsome, to approve the Consent Agenda.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

3. Minutes of the January 28, 2025 City Council Meeting (CC)

   LOCATION: None

   Motion carried to approve as submitted.

4. Resolution Amending the 2025 Council Meeting Calendar (CC)

   LOCATION: Citywide

   Resolution No. NS-30,435 was adopted amending Resolution No. NS-30,235 to revise the 2025 Council meeting calendar and cancel the April 8th regular meeting.

Consent Agenda (continued)

5. Promoting Resilient Operations for Transformative, Efficient, and Cost-Saving Transportation (PROTECT) Discretionary Grant Programs of the Department of Transportation Federal Highway Administration: Authorization for Application, Acceptance, and Appropriation of Grant Funds for the West Cliff Drive Coastal Resilience Project (CM/PW)

   LOCATION: District 6

Motion carried to

- Adopt Resolution No. NS-30,436 authorizing the City Manager to apply for, accept, and execute all necessary applications, contracts and agreements and amendments thereto and appropriate funds from the PROTECT Discretionary Grant Program for a grant to implement the West Cliff Drive Coastal Resilience Project, and

- Adopt Resolution No. NS-30,437 to amend the FY 2025 budget in the amount of $5,000,000 for the PROTECT Discretionary Grant.

6. Resolution Affirming Santa Cruz's Commitment to Abide by the California Values Act and Reaffirming Prior Council Action Restricting the use of City Resources for Immigration Enforcement (CN)

   LOCATION: Citywide

   Motion carried to:

   - Adopt Resolution No. NS-30,438 affirming Santa Cruz's commitment to abide by the California Values Act and reaffirming prior Council action restricting the use of City resources for immigration enforcement, and

   - Direct the City Manager's Office to collaborate and communicate with other local government and non-profit partners who are committed to the State's California Values Act and related policies of the State of California.

Consent Agenda (continued)

7. City Manager Authorization to Execute Residential Lease Agreements for City-Owned Property (EDH)

   LOCATION: Citywide

   Resolution No. NS-30,439 was adopted to authorize the City Manager to negotiate and execute residential lease agreements, amendments and related documents for City-owned property, in a form approved by the City Attorney.

8. Review of 2024 State of California Legislation Impacting Local Land Use, Housing, and Homelessness Response (PL/EDH/CM)

   LOCATION: Citywide

   Motion carried to accept the review of 2024 State of California legislation impacting land use, housing, and homelessness response.

9. Wharf Recovery Council Ad-Hoc Subcommittee (PR/EDH)

   LOCATION: District 4

Motion carried to appoint Councilmembers Newsome and Golder and Vice Mayor Kalantari-Johnson to a new Ad-Hoc Wharf Recovery Subcommittee to review data and options related to structural repair options for the Santa Cruz Wharf, provide input on public access and engagement, and policies governing the wharf's operations, and make recommendations to the full City Council to implement proposed strategies, policies, and actions.

10. Downtown Recovery – Phase IV – Notice of Completion for Downtown Site Furnishings Painting in the Amount of $112,550.00 (PR)

    LOCATION: District 4

    Motion carried to accept the work of H.B. Restoration Inc. (Rio Linda, CA) as completed per the Site Furnishing Design Standards and authorize the filing of the Notice of Completion for the Downtown Recovery – Phase IV (c302312) and authorizing the Parks & Recreation Director to sign the Notice of Completion as the Owner's Authorized Agent.

Consent Agenda (continued)

11. Front-Spruce-Pacific 54-Inch Sewer Rehabilitation (c401606) – Notice of Completion (PW)

    LOCATION: District 3 and 4

    Motion carried to accept the work of SAK Construction, LLC (O'Fallon, MO) as completed per plans and specifications and authorize the filing of the Notice of Completion for the Front-Spruce-Pacific 54-Inch Sewer Rehabilitation Project (c401606) and authorizing the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

12. Purchase of Wastewater Collections Septic Pump Truck – Budget Adjustment (PW)

    LOCATION: Citywide

    Motion carried to:

    - Award the contract for the purchase of one septic pump truck from Coast Counties Peterbilt (Salinas, CA) in the amount of $347,275.22; and
    - Adopt Resolution No. NS-30,440 amending the FY 2025 budget to appropriate funds in the amount of $22,984.23 from the Wastewater Fund to fully fund the purchase.

13. Resource Recovery Facility North Canyon Paving (m400020) – Notice of Completion (PW)

    LOCATION: District 6

Motion carried to accept the work of Silicon Valley Paving, Inc. (San Jose, CA) as completed per plans and specifications and authorize the filing of the Notice of Completion for the Resource Recovery Facility North Canyon Paving Project (m400020).

Consent Agenda (continued)

14. West Cliff Drive – 900 and 1000 Block Striping Plans and Temporary Traffic Control Alteration (PW)

    LOCATION: Districts 3 and 6

    Motion carried to:

    - Approve the design and installation of updated traffic striping and signage associated with the West Cliff Drive Stabilization Project (c401501) on the 900 and 1000 blocks of West Cliff Drive and Woodrow Avenue;
    - Adopt Resolution No. NS-30,441 to approve the plans for the 900 and 1000 block striping pursuant to Government Code Section 830.6; and
    - Find the project Categorical Exempt under CEQA Guidelines 14 CCR section 15301(c).

15. Wastewater Treatment Facility Dashboard - Award Contract (PW)

    LOCATION: District 3

    Motion carried to award a sole source contract for the configuration and installation of a new Aveva Pi system from Aveva Select California (Healdsburg CA) in the amount of $134,740.

End Consent Agenda

General Business

16. Children's Fund Oversight Committee (CN)

    LOCATION: Citywide

    Vice Mayor Kalantari-Johnson nominated Andrew Cunningham.

    By consensus, Andrew Cunningham was appointed to the Children's Fund Oversight Committee with a term ending January 31, 2026.

General Business (continued)

17. Commission for the Prevention of Violence Against Women

    LOCATION: Citywide

Councilmember Trigueiro nominated Courtney Barrett.

Councilmember Brunner nominated Danielle Long.

Councilmember O'Hara nominated Laura Knobel.

Councilmember Golder nominated Anissa Novak.

By consensus, Courtney Barrett and Danielle Long were reappointed, and Laura Knobel was appointed to the Commission for the Prevention of Violence Against Women with terms ending January 31, 2029, and Anissa Novak was reappointed with a term ending January 31, 2027.

18. FY 2025 Budget Adjustments and Information on City's Financial Status - Budget Adjustment (FN/HR)

LOCATION: Citywide

Director of Finance E. Cabell, Management Analyst E. Burton, and Chief People Officer S. De Leon gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. There were no speakers. Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Councilmember Trigueiro, to:

- Adopt Resolution No. NS-30,442 amending the Fiscal Year (FY) 2025 budget appropriation of expenditures to all funds as listed in Exhibit A, in the amount of $13,022,644 including an increase of $534,284 to the General Fund, and a total increase in revenues as listed in Exhibit A in the amount of $9,734,188 to all funds, including a net addition of $1,078,642 to the General Fund;

- Authorize the City Manager to allocate budgetary changes within the applicable funds and departments;

- Receive an update on the City of Santa Cruz's financial status; and

General Business (continued)

18. FY 2025 Budget Adjustments and Information on City's Financial Status - Budget Adjustment (FN/HR) (continued)

MOTION (continued):

- Adopt Resolution No. NS-30,443 amending the City of Santa Cruz Personnel Complement and Classification and Compensation Plan for multiple departments.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

19. Comprehensive Wildfire Preparedness and Safety Program (CN/FD)

LOCATION: Citywide

Councilmember O'Hara spoke.

Chief of Fire R. Oatey, Management Analyst M. Albert and Deputy Fire Marshal T. Shields gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

James Ewing-Whitman
Mary Anne Robb

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Councilmember Golder, to:

- Direct staff to initiate a Comprehensive Wildfire Preparedness and Safety Program (Program); and

- Form a City Council Ad Hoc Committee of Councilmembers O'Hara, Trigueiro and Golder to work with City staff and community stakeholders to develop the Program and support community engagement and education efforts.

General Business (continued)

19. Comprehensive Wildfire Preparedness and Safety Program (CN/FD) (continued)

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

20. Parking Lease Revenue Bond Authorization (FN/EDH/PW)

LOCATION: District 4

Director of Finance E. Cabell spoke and responded to Council questions.

Mayor Keeley opened the public comment period. The following person spoke.

Garrett

Mayor Keeley closed the public comment period.

MOTION: Councilmember Newsome moved, seconded by Councilmember Trigueiro, to introduce for publication Ordinance No. 2025-02 amending and restating Chapter 16.26 of the Municipal Code to permit the issuance of Parking Revenue Bonds by the City.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

General Business (continued)

21. Ordinance Amending Chapter 21.07 of the Santa Cruz Municipal Code to Create a Process Guaranteeing a Fair Rate of Return to Landlords of Properties With Expiring Affordability Agreements (CA)

LOCATION: Citywide

This item was continued to the February 25th Council meeting and was not discussed.

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN)

LOCATION: Citywide

Councilmember Brunner spoke and responded to Council questions.

Councilmember Newsome spoke.

Assistant City Attorney C. Bronson spoke and responded to Council questions.

Mayor Keeley opened the public comment period. The following person spoke.

James Ewing-Whitman

Mayor Keeley closed the public comment period.

MOTION: Councilmember Brunner moved, seconded by Councilmember Newsome, to:

- Introduce for publication Ordinance No. 2025-03 amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and adding objective standards to both chapters; and

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

MOTION (continued):

- Approve the CEQA determination contained in this agenda report and the proposed ordinance. The Council's action is not a "project" under CEQA. Even if this ordinance or objective standards were considered to be a "project" the following exemptions apply: "common sense" exemption (no possibility of a significant effect on the environment) (Cal. Code Regs., tit. 14, § 15061(b)(3)); Class 7 Categorical Exemption (action intended "to assure the maintenance, restoration, or enhancement of a natural resource" (Cal. Code Regs., tit. 14, § 15307); and Class 8 Categorical Exemption (action intended "to assure the maintenance, restoration, enhancement, or protection of the environment.") (Cal. Code Regs., tit. 14, § 15308).

FRIENDLY AMENDMENT: Councilmember O'Hara requested to make the following amendments to the ordinance.

Add the following language:

WHEREAS, the City Council for the City of Santa Cruz finds that the Legislature of State of California, via Health & Safety Code § 46000, declared that:

"(a) Excessive noise is a serious hazard to the public health and welfare.

(b) Exposure to certain levels of noise can result in physiological, psychological, and economic damage."

WHEREAS, the City Council finds that the City of Santa Cruz 2030 General Plan established in Chapter 8: Hazards, Safety and Noise, several goals, polices and actions to "maintain or reduce existing noise levels and control excessive noise" for residents across all land designations.

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

FRIENDLY AMENDMENT (continued):

Amend the following language:

From:

WHEREAS, the City Council for the City of Santa Cruz finds that unreasonably loud noise in commercial areas is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces; and

To:

WHEREAS, the City Council finds that unreasonably loud noise is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces; and

Amend Section 1. "City Council Intent":

From:

The City Council for the City of Santa Cruz finds that unreasonably loud noise in commercial areas is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces.

To:

The City Council for the City of Santa Cruz finds that unreasonably loud noise is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces.

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

FRIENDLY AMENDMENT (continued):

From:

The City Council desires to set objective standards to create a community understanding about unreasonably loud noise and to foster an environment of mutual respect, while at the same time promoting self-expression.

To:

The City Council desires to set objective standards to create a community understanding about unreasonably loud noise, promote public health, safety, and welfare for its citizenry, and to foster an environment of mutual respect, while at the same time recognizing certain protections by the constitutional rights of freedom of speech and assembly and promoting self-expression.

Amend Section 9.36.020(C)

From:

If the noise producing source is on public property in a commercial zone (as defined below), amplified noise and/or repetitive banging or percussive noises that can be heard 75 or more feet from the noise-producing source are presumptively unreasonably loud or disturbing as prohibited by this section. This presumption, however, shall not apply to permitted amplification or percussion used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65) and Major Public Special Events (Chapter 10.64)).

To:

If the noise producing source is on a public street, sidewalk, alley, right-of-way, park, or any other public property, amplified noise and/or repetitive banging or percussive noises that can be heard 75 or more feet from the noise-producing source are presumptively unreasonably loud or disturbing as prohibited by this section. This presumption, however, shall not apply to permitted amplification or percussion used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65) and Major Public Special Events (Chapter 10.64)).

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

FRIENDLY AMENDMENT (continued):

Remove the following language from Section 9.36.020(C)(1):

> Within this section and SCMC § 9.40.010(B)(3), the term "commercial zone" means one of the following places: (i) the area within the boundaries of the Downtown Plan Area, as currently adopted or as amended; or (ii) the area along or within 75 feet of any point of Soquel Ave. within the City of Santa Cruz; or (iii) the area along or within 75 feet of any point on Mission St./Highway 1 within the City of Santa Cruz.

Amend Section 9.40.010(B)(3):

From:

> Shall be operated at a volume of sound that is not be unreasonably loud, raucous, jarring, disturbing or a nuisance to reasonable persons of normal sensitiveness within the range of audibility, considering the factors set forth in Section 9.36.020(B). If the noise producing source is on public property in a commercial zone (as defined by SCMC § 9.36.020(C)(1)), amplified noise that can be heard 75 or more feet from the noise-producing source is presumptively unreasonably loud or disturbing as prohibited by this subsection. This presumption, however, shall not apply to permitted amplification used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65), Major Public Special Events (Chapter 10.64)).

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

FRIENDLY AMENDMENT (continued):

To:

Shall be operated at a volume of sound that is not be unreasonably loud, raucous, jarring, disturbing or a nuisance to reasonable persons of normal sensitiveness within the range of audibility, considering the factors set forth in Section 9.36.020(B). If the noise producing source is on a public street, sidewalk, alley, right-of-way, park, or any other public property, amplified noise that can be heard 75 or more feet from the noise-producing source is presumptively unreasonably loud or disturbing as prohibited by this subsection. This presumption, however, shall not apply to permitted amplification used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65), Major Public Special Events (Chapter 10.64)).

Councilmembers Brunner and Newsome did not accept.

SUBSTITUTE MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to introduce for publication Ordinance No. 2025-03 amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and adding objective standards to both chapters with the following amendments:

Add the following language:

WHEREAS, the City Council for the City of Santa Cruz finds that the Legislature of State of California, via Health & Safety Code § 46000, declared that:

"(a) Excessive noise is a serious hazard to the public health and welfare.

(b) Exposure to certain levels of noise can result in physiological, psychological, and economic damage."

WHEREAS, the City Council finds that the City of Santa Cruz 2030 General Plan established in Chapter 8: Hazards, Safety and Noise, several goals, polices and actions to "maintain or reduce existing noise levels and control excessive noise" for residents across all land designations.

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

SUBSTITUTE MOTION (continued):

Amend the following language:

From:

WHEREAS, the City Council for the City of Santa Cruz finds that unreasonably loud noise in commercial areas is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces; and

To:

WHEREAS, the City Council finds that unreasonably loud noise is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces; and

Amend Section 1. "City Council Intent":

From:

The City Council for the City of Santa Cruz finds that unreasonably loud noise in commercial areas is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces.

To:

The City Council for the City of Santa Cruz finds that unreasonably loud noise is a major issue in the City impacting the public's health, use, and enjoyment of both public and private spaces.

From:

The City Council desires to set objective standards to create a community understanding about unreasonably loud noise and to foster an environment of mutual respect, while at the same time promoting self-expression.

To:

The City Council desires to set objective standards to create a community understanding about unreasonably loud noise, promote public health, safety, and welfare for its citizenry, and to foster an environment of mutual respect, while at the same time recognizing certain protections by the constitutional rights of freedom of speech and assembly and promoting self-expression.

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

SUBSTITUTE MOTION (continued):

Amend Section 9.36.020(C)

From:

If the noise producing source is on public property in a commercial zone (as defined below), amplified noise and/or repetitive banging or percussive noises that can be heard 75 or more feet from the noise-producing source are presumptively unreasonably loud or disturbing as prohibited by this section. This presumption, however, shall not apply to permitted amplification or percussion used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65) and Major Public Special Events (Chapter 10.64)).

To:

If the noise producing source is on a public street, sidewalk, alley, right-of-way, park, or any other public property, amplified noise and/or repetitive banging or percussive noises that can be heard 75 or more feet from the noise-producing source are presumptively unreasonably loud or disturbing as prohibited by this section. This presumption, however, shall not apply to permitted amplification or percussion used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65) and Major Public Special Events (Chapter 10.64)).

Remove the following language from Section 9.36.020(C)(1):

Within this section and SCMC § 9.40.010(B)(3), the term "commercial zone" means one of the following places: (i) the area within the boundaries of the Downtown Plan Area, as currently adopted or as amended; or (ii) the area along or within 75 feet of any point of Soquel Ave. within the City of Santa Cruz; or (iii) the area along or within 75 feet of any point on Mission St./Highway 1 within the City of Santa Cruz.

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

SUBSTITUTE MOTION (continued):

Amend Section 9.40.010(B)(3):

From:

> Shall be operated at a volume of sound that is not unreasonably loud, raucous, jarring, disturbing or a nuisance to reasonable persons of normal sensitiveness within the range of audibility, considering the factors set forth in Section 9.36.020(B). If the noise producing source is on public property in a commercial zone (as defined by SCMC § 9.36.020(C)(1)), amplified noise that can be heard 75 or more feet from the noise-producing source is presumptively unreasonably loud or disturbing as prohibited by this subsection. This presumption, however, shall not apply to permitted amplification used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65), Major Public Special Events (Chapter 10.64)).

To:

> Shall be operated at a volume of sound that is not be unreasonably loud, raucous, jarring, disturbing or a nuisance to reasonable persons of normal sensitiveness within the range of audibility, considering the factors set forth in Section 9.36.020(B). If the noise producing source is on a public street, sidewalk, alley, right-of-way, park, or any other public property, amplified noise that can be heard 75 or more feet from the noise-producing source is presumptively unreasonably loud or disturbing as prohibited by this subsection. This presumption, however, shall not apply to permitted amplification used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65), Major Public Special Events (Chapter 10.64)).

Chief of Police B. Escalante responded to Council questions.

General Business (continued)

22. Ordinance Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) (continued)

ACTION: The motion to accept the substitute motion failed with the following vote.

AYES:	Councilmembers Golder, O'Hara; Vice Mayor Kalantari-Johnson.
NOES:	Councilmembers Trigueiro, Brunner, Newsome; Mayor Keeley.
ABSENT:	None.
DISQUALIFIED:	None.

ACTION: The original motion carried with the following vote.

AYES:	Councilmembers Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	Councilmember Trigueiro.
ABSENT:	None.
DISQUALIFIED:	None.

Adjournment – Councilmember Golder moved, seconded by Councilmember Trigueiro, to adjourn. By consensus City Council adjourned at 2:34 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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